

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 06/24/2026 TIME: 9:00 and 9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV428612	Plaza Services, LLC vs George Berry	Motion: Set Aside Default/Judgment Please Ctrl Click on (or scroll down to) Line 1
LINE 2	24CV434201	Balbinder Kaur vs General Motors, LLC	Motion: Attorneys Fees & Costs
LINES 3-4	25CV456689	Richard Chamberlain vs Santa Clara Public Defender's Office et al	Hearing: Motion to Strike Hearing: Demurrer Please Ctrl Click on (or scroll down to) Line 3
LINES 5-6	25CV460503	Roy Toledo vs D.H. Smith Company, Inc.	Motion: Sanctions & Protective Order Please Ctrl Click on (or scroll down to) Line 5
LINE 7	25CV471073	John Doe L.M., an individual, vs Craig Chandler et al	Motion: Compel Please Ctrl Click on (or scroll down to Line 7)
LINES 8	25CV478936	Ari Lazier vs Walnut Creek Ford et al	Hearing: Petition Compel Arbitration Please scroll down to Line 8
9:01	CASE #	CASE TITLE	RULING
LINE 1	25CV468267	Mercy Falls, LLC vs United Security Specialists, Inc. et al	Motion: Withdraw as attorney Notice is proper. No opposition received. Attorney Jacqueline Simonovich's motion to be relieved as counsel for Plaintiff Mercy Falls LLC is GRANTED. Movant to e-file Form MC-053 within 2 days of the hearing. Movant shall give notice to Plaintiff within 2 days of the date of the hearing, including the following: Plaintiff must appear at the Further Case Management Conference (to be scheduled) in Department 12. * Counsel to appear for scheduling*

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Calendar Line 1

Case Name: *Plaza Services LLC v. George Berry*

Case No.: 24CV428612

Defendant's Motion to Set Aside Default Judgment for lack of service

The Court file reflects a facially valid proof of substituted service on July 25, 2024 at 4:55 p.m. at Defendant's residence on Sequoia Drive in Gilroy, California. A signed proof of service creates a rebuttable presumption that service was properly effected. Defendant bears the burden to present admissible evidence establishing lack of valid service. Defendant has not met his burden to rebut that presumption.

Defendant's motion argues that front door surveillance footage exists showing improper service (to be provided upon request.) No declaration regarding details provided. Unsubmitted evidence is insufficient to rebut the presumption of proper service. The Court does not consider evidence referenced in a motion but not submitted. The Court declines to continue the hearing sua sponte to permit supplementation of the evidentiary record based solely on assertions that additional evidence may exist.

The Court further notes that Defendant did not file proof of service of the motion itself. While this defect is not jurisdictional, it reflects noncompliance with the procedural requirements governing noticed motions and further supports denial of relief on the current record.

Accordingly, Defendant's motion to set aside default judgment is DENIED.

The Court will prepare the Order.

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